

		hearing (ROA 4); and (4) the notice of filing compliant purchase contract signed on June 16, 2026 (ROA 12). Based on those documents and exhibits, the court makes the following findings as required by Insurance Code sections 10137 and 10139.5(a): (1) The transfer is fair and reasonable and in the best interest of Payee, taking into account the welfare and support of his dependents; (2) Payee has been advised in writing by Petitioner to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived, in writing, the opportunity to receive the advice; (3) Petitioner has provided Payee with a disclosure form that complies with Insurance Code section 10136, and the transfer agreement complies with Insurance Code sections 10136 and 10138; (4) The transfer does not contravene any applicable statute or the order of any court or other government authority and otherwise complies with the requirements of Insurance Code section 10134, et seq.; (5) Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code section 10136; and (6) Payee understands and does not wish to exercise his right to cancel the transfer agreement. In addition, Petitioner has established Payee's residence and that venue is proper in this court. Based on the foregoing, the petition is GRANTED. Petitioner's counsel is ordered to submit a proposed order approving the transfer consistent with the requirements of Insurance Code section 10134 et seq., and to give notice of this ruling.
2.	<i>McKinney vs. Piecemakers</i> <i>2018-00983085</i>	Before the court is the motion to appoint a receiver filed by plaintiff and judgment creditor Michelle McKinney (Creditor). As more fully set forth below, the motion is DENIED. Creditor requests the court appoint a receiver for the purpose of carrying out the monetary judgment entered in this action, including but not limited to, taking possession of and selling the real property located at 1920 Swan Drive, Costa Mesa, California, which is allegedly owned, at least in significant part, by defendant and judgment debtor Douglas Follette (Debtor). Creditor moves for appointment of the receiver pursuant to Code of Civil Procedure section 564, subdivision (b)(3). That code section provides a receiver may be appointed by the court in which an action or proceeding is pending

		"[a]fter judgment, to carry the judgment into effect." (Code Civ. Proc., § 564, subds. (a)-(b)(3).) "Because the appointment of a receiver transfers property . . . 'out of the hands of its owners' and into the hands of a receiver [citation], the appointment of a receiver is a very 'drastic,' 'harsh,' and costly remedy that is to be 'exercised sparingly and with caution.' [Citations.] Due to the 'extraordinary' nature of this remedy and the special costs it imposes, courts are strongly discouraged—although not strictly prohibited—from appointing a receiver unless the more intrusive oversight of a receiver is a 'necessity' because other, less intrusive remedies are either 'inadequate or unavailable.'" . . . [¶] In light of the sheer number of enforcement mechanisms for collecting money judgments under the Enforcement of Judgments Law (which range from levies to liens to wage garnishment (§§ 695.010 et seq., 697.010 et seq., 699.010 et seq., 699.510 et seq., 706.020 et seq.)); accord, <i>Tucker, supra</i>, 70 Cal.App.2d at p. 773, 161 P.2d 697 ['ordinarily a judgment creditor is able to collect money . . . by way of garnishment or levy of execution']), appointment of a receiver is rarely a 'necessity' and, as a consequence, 'may not ordinarily be used for the enforcement of a simple money judgment.' (<i>Jackson, supra</i>, 253 Cal.App.2d at p. 1040, 62 Cal.Rptr. 121; accord, <i>White v. White</i> (1900) 130 Cal. 597, 599, 62 P. 1062 [receiver may not be appointed to collect a money judgment under section 564, subdivision (b)(3)].) Instead, the appointment of a receiver to enforce a money judgment is reserved for 'exceptional' circumstances where the judgment creditor's conduct makes a receiver necessary—and hence 'proper.' [Citations.] This occurs when the judgment debtor has frustrated the judgment creditor's collection efforts through obfuscation or through otherwise contumacious conduct that has rendered feckless the panoply of less intrusive mechanisms for enforcing a money judgment. [Citations.]" (<i>Medipro Med. Staffing LLC v. Certified Nursing Registry, Inc.</i> (2021) 60 Cal.App.5th 622, 628-629.) Creditor relies on <i>Olsan v. Comora</i> (1977) 73 Cal.App.3d 642, 647 (<i>Olsan</i>), as support for its request to appoint a receiver to aid in the collection of a money judgment. <i>Olsan</i>, however, predated the Enforcement of Judgments Law from 1982. (<i>Wells Fargo Fin. Leasing, Inc. v. D & M Cabinets</i> (2009) 177 Cal. App. 4th 59, 70 and 76.) More importantly, <i>Olsan</i> is readily distinguishable on its facts. In <i>Olsan</i>, the plaintiff provided a declaration in support of the request to appoint a receiver that Plaintiff had "done everything possible to satisfy the judgment by levy of
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		execution, and had conducted a diligent search to discover other assets. Statements by [Defendant] to [Plaintiff's] attorney made after the first execution support a conclusion that no assets other than his business income were available to satisfy the judgment or, if there were, he had, or would, take such action as necessary to prevent their seizure to satisfy the judgment. Here, the declarations in support of the motion for appointment of a receiver obviously convinced the court that a receiver was necessary in aid of the partially satisfied execution." (<i>Olsan, supra</i>, 73 Cal.App.3d at p. 648.) Unlike in <i>Olsan</i>, Plaintiff in the present case has not provided any details regarding her attempts to satisfy the judgment. Plaintiff states the Piecemakers filed for bankruptcy and a stay, and that Follette argued the bankruptcy stay should apply to Follette as well, which has not been denied. (Weaver Decl. ¶ 13.) Plaintiff also stated Follette made inconsistent statements regarding the Property. (Weaver Decl. ¶ 15.) What Plaintiff has not alleged is any actual efforts to collect the judgment against Follette or that any of the Enforcement of Judgments Law collection methods have been attempted. Plaintiff claims there is a conspiracy between the Defendants regarding the bankruptcies filed by Piecemakers and Stanfield (the latter has been dismissed) and other members of Piecemakers filing claims for wages in the bankruptcy court, however, there is nothing regarding efforts to seek the assets of Follette or any bankruptcy filed by Follette. Further, Plaintiff provided no citations showing a bankruptcy filing is an exceptional circumstance which would permit the receiver. The court simply has not been convinced that the necessary circumstances have been shown to support and justify appointment of a receiver to enforce the monetary judgment at this point. Indeed, Creditor has not shown any "exceptional" circumstances exist which would require the appointment of a receiver. Creditor has not shown any attempts to collect the judgment against Debtor or attempts, outside of co-debtors' bankruptcy filings, to obfuscate any attempt to collect the judgment from Debtor specifically. It would be an abuse of this court's discretion to appoint a receiver without substantial evidence supporting the need for a receiver. (<i>Medipro, supra</i>, 60 Cal. App. 5th at p. 629.) For the above reasons, the motion is DENIED. Creditor's counsel is ordered to give notice of this ruling.
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